

9 & 10 GEO. 6. *Ipswich Corporation* Ch. xlv.
(*Trolley Vehicles*) Order Confirmation Act, 1946.



CHAPTER xlv.

An Act to confirm a Provisional Order made by the Minister of Transport under the Ipswich Corporation Act 1925 relating to Ipswich Corporation trolley vehicles.
[1st August 1946.]

WHEREAS under the authority of section sixteen of the Ipswich Corporation Act 1925 the Minister of Transport 15 & 16 Geo. 5. has made the Provisional Order set out in the schedule to this c. ciii. Act annexed :

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order which as amended is set out in the schedule to Confirmation this Act annexed shall be and the same is hereby confirmed and of Order in all the provisions thereof in manner and form as they are set out schedule. in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

2. This Act may be cited as the Ipswich Corporation (Trolley Short title. Vehicles) Order Confirmation Act 1946.

SCHEDULE.

IPSWICH CORPORATION.

Order authorising the mayor aldermen and burgesses of the borough of Ipswich to provide maintain and use trolley vehicles upon certain routes in that borough and in the parishes of Nacton Rushmere St. Andrew Sproughton and Whitton.

Short and
collective
titles.

1.—(1) This Order may be cited as the Ipswich Corporation (Trolley Vehicles) Order 1946.

(2) The Ipswich Corporation (Trolley Vehicles) Act and Orders 1925 to 1938 and this Order may be cited together as the Ipswich Corporation (Trolley Vehicles) Act and Orders 1925 to 1946.

Interpretation.

2. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely):—

“The Corporation” means the mayor aldermen and burgesses of the borough of Ipswich;

“The borough” means the borough of Ipswich;

“The Act of 1925” means the Ipswich Corporation Act 1925;

“The Order of 1931” and “the Order of 1935” mean respectively the Ipswich Corporation (Trolley Vehicles) Order 1931 and the Ipswich Corporation (Trolley Vehicles) Order 1935;

“Trolley vehicle” and “trolley vehicle equipment” have the meanings assigned to them respectively by section 2 (Interpretation) of the Order of 1935;

“The Act of 1933” means the Local Government Act 1933.

23 & 24 Geo. 5.
c. 51.

Power to use
trolley vehicles
upon certain
routes.

3. The Corporation may use trolley vehicles upon the following routes in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say):—

Route No. 1 (5 furlongs 9·3 chains or thereabouts in length to be situate in the borough) commencing at the junction of Ranelagh Road with Princes Street by a junction with Route No. 5 authorised by the Act of 1925 passing along Ranelagh Road to and terminating at the junction of that road with London Road by a junction with Route No. 3 authorised by the Act of 1925;

Route No. 2 (2 furlongs 7·7 chains or thereabouts in length to be situate in the borough and in the parish of Sproughton in the rural district of Samford) commencing in London Road by a junction with Route No. 5 authorised by the Order of 1931 at its termination passing along London Road to and terminating in that road at its junction with Sprites Lane;

Route No. 4 (5 furlongs 2·3 chains or thereabouts in length to be situate in the borough and in the parish of Whitton in the rural district of Gipping) commencing at the junction of Norwich Road with Whitton Church Lane by a junction with Route No. 1 authorised by the Act of 1925 passing along Whitton Church Lane and terminating therein at a point 1,150 yards or thereabouts from its point of commencement;

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Route No. 5 (1 mile 7 furlongs 7·2 chains or thereabouts in length to be situate in the borough) commencing at the junction of St. Georges Street with St. Matthews Street by a junction with Route No. 1 authorised by the Act of 1925 passing along St. Georges Street and Henley Road to and terminating in Henley Road at the entrance to Thurleston Lodge ;

Route No. 5A (2 furlongs 3·2 chains or thereabouts in length to be situate in the borough) commencing at the junction of Fonnereau Road with Henley Road by a junction with Route No. 5 hereinbefore described passing along Fonnereau Road to and terminating at the junction of that road with Crown Street by a junction with Route No. 1 authorised by the Order of 1931 ;

Route No. 6 (1 mile 7 furlongs 8 chains or thereabouts in length to be situate in the borough) commencing at the junction of St. Margaret's Street with St. Margaret's Green by a junction with Route No. 1A authorised by the Act of 1925 passing along St. Margaret's Green Bolton Lane and Westerfield Road to and terminating at the junction of the last-named road with Lower Road and Church Lane ;

Route No. 7 (1 mile 5 furlongs 2 chains or thereabouts in length to be situate in the borough) commencing at the junction of Tuddenham Road with Bolton Lane by a junction with Route No. 6 hereinbefore described passing along Tuddenham Road to and terminating at the junction of that road with Humber Doucy Lane ;

Route No. 8 (1 mile 6 furlongs 4·9 chains or thereabouts in length to be situate in the borough and in the parish of Rushmere St. Andrew in the rural district of Deben) commencing at the junction of Sidegate Lane with Woodbridge Road by a junction with Route No. 1A authorised by the Act of 1925 passing along Sidegate Lane and Humber Doucy Lane to and terminating at the junction of the last-named lane with Rushmere Road by a junction with Route No. 2 authorised by the Order of 1931 ;

Route No. 9 (2 furlongs 9·1 chains or thereabouts in length to be situate in the borough and in the parish of Nacton in the rural district of Deben) commencing at the junction of Nacton Road with Lindbergh Road by a junction with Route No. 2 authorised by the Ipswich Corporation (*Trolley Vehicles*) Order 1938 passing along Nacton Road in a south-easterly direction to and terminating in that road at the entrance to the works of Crane Limited ;

Route No. 10 (2 furlongs or thereabouts in length to be situate in the borough) commencing at the junction of Clapgate Lane with Cotman Road by a junction with Route No. 4 authorised by the Order of 1931 passing along Clapgate Lane to and terminating in that lane at a point 62 yards to the south-east of its junction with Boyton Road ;

Route No. 11 (2 furlongs 3 chains or thereabouts in length to be situate in the borough) commencing at the junction of Dove Street with St. Helen's Street by a junction with Route No. 1 authorised by the Act of 1925 passing along Dove Street

Pottery Street Hill Street Long Street and Back Hamlet to and terminating at the junction of Back Hamlet with Fore Street and Fore Hamlet by a junction with Route No. 6 authorised by the Act of 1925 :

Provided that—

- (a) before equipping any route to include a turning point or before arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister of Transport for approval and in the case of a turning point outside the borough shall also submit a copy of such plans to the chief constable of East Suffolk and to the county council of the administrative county of East Suffolk and before approving any such plans the Minister of Transport shall give to the chief constable and to the said county council an opportunity of making representations with reference thereto and shall consider any such representations which may be made ;
- (b) the Corporation shall not without the consent in writing of the Minister of Transport use trolley vehicles along or over the under-mentioned routes or parts of routes authorised by this Order and in giving any such consent the Minister may impose such conditions in regard to such consent as he may think fit—

Route No. 4 ;

Route No. 5 from the point of commencement to the junction of Henley Road and Valley Road including the junction of those two roads ;

Route No. 6 at the junction of Westerfield Road and Valley Road ;

Route No. 8 from the junction of Sidegate Lane with Humber Doucy Lane to the point of termination ;

Route No. 11.

For the
protection of
the London
and North
Eastern
Railway
Company.

4. In its application to the provisions of this Order section 34 (For protection of London and North Eastern Railway Company) of the Act of 1925 shall have effect as if in lieu of subsections (12) and (13) thereof the following provisions were substituted respectively :—

- (12) The Corporation shall not permit any trolley vehicles to stop on Route No. 1 and Route No. 6 where the same will cross on the level the railways of the company in Ranelagh Road and at Westerfield Station respectively unless such stoppage be occasioned by circumstances over which the Corporation have no control :
- (13) The drivers of trolley vehicles passing along Route No. 1 in front of the Ipswich station shall observe any reasonable regulations from time to time made by the company with regard to the traffic in front of the said station :

Provided that fourteen days before any such regulations shall come into operation the company shall send a copy thereof to the Corporation and if the Corporation shall before the expiration of such fourteen days give notice to the company objecting to the regulations or any of them they shall not come into operation until agreed or settled by arbitration.

5. The following provisions of the Order of 1931 and the Order of 1935 shall extend and apply to the trolley vehicles authorised by this Order as if those provisions were with any necessary modifications set out in this Order (that is to say) :—

The Order of 1931—

Section 4 (Adaptation of roads) ;

Section 5 (Byelaws as to intending passengers outside borough) :

The Order of 1935—

Section 3 (2) (Power to use trolley vehicles upon certain routes) ;

Section 4 (Period for completion of trolley vehicle equipment) ;

Section 6 (Application of byelaws) ;

Section 8 (Procedure for making byelaws) ;

Section 9 (Inquiries by Minister of Transport).

6. Not less than fourteen days before submitting any byelaws As to proposed to be made in pursuance of section 46 of the Tramways byelaws. Act 1870 or section 22 of the Act of 1925 with reference to the trolley vehicle routes authorised by this Order for confirmation by the confirming authority the Corporation shall submit a copy of such byelaws to the county council of the administrative county of East Suffolk for any observations that county council may desire to make within the said period.

7.—(1) The Corporation shall have power in addition and without Borrowing prejudice to their powers of borrowing under the Act of 1933 from powers. time to time to borrow without the consent of any sanctioning authority for or in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all money so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table namely :—

1	2	3
Purpose.	Amount.	Period for repayment calculated (except where otherwise stated) from the date or dates of borrowing.
(a) The provision of trolley vehicles ...	£18,000	Ten years.
(b) The provision of trolley vehicle equipment and the construction of other works necessary for working trolley vehicles along the routes authorised by this Order.	£116,000	Twenty years.
(c) The construction alteration and extension of depots and buildings.	£5,000	Thirty years.
(d) The payment of the costs charges and expenses of this Order.	The sum requisite.	Five years from the passing of this Order.

(2) For the purposes of subsection (2) of section 119 (Power to borrow) of the Act of 1925 as modified by section 197 of the Act of 1933 the purposes of this Order shall be deemed to be purposes of Part II (*Trolley Vehicles*) of the Act of 1925.

Restriction on borrowing.

2 & 3 Geo. 6.

c. 62.

9 Geo. 6. c. 10.

8.—(1) So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an order made under section 1 of the Borrowing (Control and Guarantees) Act 1946 it shall not be lawful otherwise than by the use of the Corporation's internal funds to exercise the powers of borrowing conferred by this Order (other than the power of borrowing to pay the costs charges and expenses of this Order as hereinafter defined) without such consent.

8 & 9 Geo. 6.

c. 18.

Costs of Order.

(2) It shall not be lawful to exercise the powers of borrowing conferred by this Order otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

9. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

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